

|| KARUNA ||

Sadness, compassion and sympathy...

Imagine being left with neither home nor your life's savings! Scary, isn't it? Many have suffered this anguishing, hard reality. It is all about buying a property with clear documents and titles in place so that you don't land into legal hassles of any kind in future.

LEGALLY YOURS!

There are many factors that every investor should be in the know-how of and consider well before taking the final decision of purchasing the property.

Here's a sneak peek into the legal aspects of buying any property —

OWNERSHIP ISSUES

The seller should have a registered ownership of the property. The documents that are required to be verified by an investor are —

- **Sale/investor deed:** The deed is drawn in favour of the seller. If the property is leasehold, it should be converted into a freehold property.
- **Mutation certificate:** The certificate is drawn in favour of the seller reflecting name of the seller as owner in the records of government land or the municipal authorities. This certificate is generally issued by the Municipal Corporation in Delhi for the purpose of house and property taxes.
- **Linking title documents:** This is done in the name of the original owner like in cases where there has been any previous sale of the property or in cases where there have been done conveyance deeds and allotments if any.

ENCUMBRANCES AT BAY

There should not be any encumbrance on the property. The papers that should be in place and that any investor should check thoroughly are —

- Existing loans and charges.
- Original title documents: If original documents are not with the seller, it is likely that he or she may have mortgaged the property by deposit of title deeds.

UTILITIES

The utilities in respect of the property should be in the name of the seller. Documents to look out for are —

- **House/property tax:** Bills should be in the name of the seller and they all

should be fully paid and debts, if any, cleared and settled.

- **Electricity and water:** It is necessary that electricity and water connections should be in the name of the seller and all amounts should be fully paid.

POSSESSION

The physical possession of the property should be with the seller. One should therefore thoroughly check the following documents:—

Possession letter: The possession letter or the certificate confirming that the physical possession of the property is with the seller.

Hence, before investing in any property, just make sure to complete all legal formalities. The above pointers are equally important for any investor to ensure that the asset being bought is an asset as dreamed and not a liability.

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